

Ashok Siddharth v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 12026 of 2022 · WRIT - C No. - 12026 of 2022
· **Writ disposed; relegated to clause 6.5; coercive stay eight weeks.**

HEADNOTE

A consumer seeking a mandamus to decide a representation against an electricity demand, and to restrain coercive action, was relegated without any opinion on merits to an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005. The objection, if filed within four weeks, was to be decided in accordance with law within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Ashok Siddharth invoked the Allahabad High Court's writ jurisdiction after a demand by the Power Distribution Corporation, seeking a mandamus to decide his representation dated 15 November 2021 and a further direction that respondent no. 2 not take illegal action against him. Counsel for the Corporation stated on instructions that the petitioner might file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and stayed coercive action on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ seeking a mandamus to decide a representation against an electricity demand was disposed of by relegating the consumer to a Para 6.5 objection, without any merits determination. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The licensee's statement that an objection to the impugned demand would be decided in accordance with law was given effect as the statutory Para 6.5 path, with a time-bound decision and a short stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND AND OF THE REPRESENTATION DATED 15.11.2021
Court expressly declined to express any opinion on merits. ¶ 1